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Deposition Questions for Brandi Benjamin (First-Line Supervisor)

Case No. HHS-IHS-0296-2023

I. Introduction and Background

1. Please state your full name and your position at the Phoenix Indian Medical Center in January through April of 2023.
2. You became Mr. Turnage's first-line supervisor in January 2023, correct?
3. Please describe your professional relationship with Candace Lee and Debra Ward Lund.

II. Relationship with Involved Parties

1. Please describe your relationship with Ms. Tonie Greve.
2. Would you characterize Ms. Greve as a personal friend, or simply a coworker?
3. How frequently do you interact with Ms. Greve on a social basis during the workday? For instance, how often, on average, would you say you eat lunch with her?
4. Do you socialize with Ms. Greve outside of work hours?
5. You were aware, were you not, that in December 2022 Mr. Turnage and four of his subordinate nurses had filed a formal hostile work environment complaint specifically naming your friend, Ms. Greve, as the responsible party?
6. Did your friendship with Ms. Greve influence your perception of Mr. Turnage or your actions on March 21, 2023?
7. To your knowledge, is it true that Ms. Greve has a history of filing EEO complaints, and in fact, had filed EEO complaints against every one of her direct supervisors at the facility prior to Mr. Turnage?

III. Treatment of Other Nurses Involved in Complaint Against Ms. Greve

1. You've acknowledged you were aware of the hostile work environment complaint filed by Mr. Turnage and other nurses against Ms. Greve. Can you please identify the four other nurses who were complainants in that matter?
2. Let's go through them one by one. What is the current employment status of each of those four nurses with the Indian Health Service?
3. Let's talk about Ms. Frost, one of those nurses. Is it not true that shortly after you took over Mr. Turnage's supervisory duties, you directed Human Resources to rescind a promotion or a new position offer that had been extended to Ms. Frost?
4. What was the basis for your decision to have that offer rescinded?
5. Now let's discuss Ms. Barr, another of the nurses who filed the complaint. What is her current employment status?
6. Is it true that Ms. Barr resigned from her position at the agency?
7. Were you aware of the reasons she gave for her resignation?
8. Since you assumed supervisory duties over the clinic, have any employees filed EEO complaints against you?
9. Isn't it a fact that Ms. Barr stated she was leaving because she found the work environment under your supervision to be toxic and hostile?

IV. Handling of Hostile Work Environment Complaints Against Ms. Greve

1. Let's talk about the hostile work environment complaints filed against your friend, Ms. Greve. You were aware that Mr. Turnage and four other nurses filed such complaints, correct?
2. Were those five complaints ever formally investigated by the agency?
3. If so, what was the outcome of those investigations? Was any corrective action taken against Ms. Greve?
4. Are you aware of an employee named Nastassia James?

5. Is it true that Ms. James also resigned from her position at the facility?
6. Are you aware that upon her resignation, Ms. James submitted a detailed, lengthy statement to Human Resources?
7. In that statement, did Ms. James assert that she was leaving specifically because of a hostile work environment created by Ms. Tonie Greve?
8. So, to be clear, you had at least five formal EEO complaints and a detailed exit statement from another employee, all identifying Ms. Greve as the source of a hostile work environment. Is that correct?
9. Despite this volume of complaints, Ms. Greve was never disciplined and remained in her position, while Mr. Turnage and the nurses who complained against her were either removed, had job offers rescinded, or felt compelled to resign. Is that an accurate summary of the situation?

V. Regarding FMLA Paperwork (Claim 1)

1. You testified that Mr. Turnage provided you with FMLA papers that were incomplete on multiple occasions. Is that correct?
2. Are you familiar with the federal regulation, 29 C.F.R. § 825.305(c)?
3. This regulation states that if a certification is incomplete, the employer must state *in writing* what additional information is needed and give the employee seven days to fix it. Did you ever provide Mr. Turnage with such a written notice?
4. Mr. Turnage's FMLA request was ultimately approved on April 13, 2023. Did he provide any additional medical information between your final request to him and the date of approval?
5. If he did not provide any new information, why was the paperwork that you deemed incomplete suddenly sufficient for approval?

VI. The Alleged Threat on March 21, 2023 (Claims 3 & 4)

1. Let's turn to the events of March 21, 2023. In your sworn testimony, you state you heard Mr. Turnage say, "get [Ms. Greve] out of my unit before I beat the fucking shit out of her." You also state that Ms. Ashley Krumenacker was in the office and heard this comment. Is that your testimony?
2. Ms. Krumenacker, the sole witness you identified, testified under oath that she "did not hear the comment in question.\" Can you explain this direct contradiction? Is it your testimony that Ms. Krumenacker is lying?
3. After you allegedly heard this threat, what were your immediate actions? Who was the very first person you reported this to?
4. In your affidavit, you state you became aware of Mr. Turnage's prior protected EEO activity from an email he sent you on the morning of March 21, 2023. Is that correct?
5. Can you confirm the timeline? You became aware of his EEO activity, and then later that same day, you allege he made this violent threat?
6. Given that Ms. Krumenacker refutes your story, and that you made this accusation only hours after learning Mr. Turnage had engaged in protected EEO activity, isn't it true that your accusation was an act of retaliation?

VII. Involvement of Law Enforcement

1. The record indicates that the Phoenix Police Department was called in response to your allegation. Who made that call?
2. Did you personally call the police? If not, did you request that someone else, such as Ms. Ward Lund, call the police?
3. What was the specific information relayed to the police dispatcher? Did you report that a violent threat had been made?
4. Were you aware that Ms. Krumenacker did not corroborate your story *before* law enforcement was contacted?

5. If so, why did you feel it was necessary to involve the police based on your uncorroborated statement alone?
6. Did you provide a statement to the responding police officers? Did you review the police report after it was filed?
7. In your professional experience at the facility, how many times have you been aware of police being called in response to a verbal, interpersonal conflict between employees?

Deposition Outline: Line of Questioning for Debra Ward Lund Regarding Breach of EEO Procedure

I. Foundation: Establishing Knowledge of EEO Responsibilities and Procedures

1. Ms. Ward Lund, could you please state your full name and title for the record?
2. How long have you served as the Chief Operating Officer and Acting Chief Executive Officer at the Phoenix Indian Medical Center?
3. As a senior executive in a federal agency, have you received training regarding the handling of Equal Employment Opportunity (EEO) complaints?
4. What was your understanding of the proper procedure to follow when a subordinate employee files a formal EEO complaint, such as one alleging sexual harassment, against another manager?
5. Specifically, what is your understanding of the rules regarding confidentiality in EEO matters?
6. Why is maintaining confidentiality important at the initial stage of an EEO complaint?
7. I'd like to read a statement from your sworn affidavit in the Report of Investigation, on page 98. In response to a question about your role, you stated: "Yes. My role as the CEO is unique because I am not the proposing or deciding official. If the matter is grieved, I have to respond, so I cannot be part of the investigation." Is that an accurate reflection of your testimony?
8. Could you elaborate on why you believed it was important for you, as CEO, to 'not be part of the investigation'?
9. Would you agree that a key part of remaining separate from an investigation is to avoid any action that could influence the parties or compromise the integrity of the process?

10. Would immediately informing the subject of a complaint that a complaint has been filed against them constitute being 'part of the investigation'?

II. The Contradiction: Confronting the Witness with Her Actions

11. Ms. Ward Lund, I'd now like to read another statement from your sworn affidavit, also on page 98 of the Report of Investigation. You stated: "Yes. Upon receiving the email from Mr. Turnage on March 3, 2023, I immediately went to Ms. Lee's office and asked her what the email was about… She read the email for the first time while I was in her office and immediately became extremely upset and tearful. I granted her leave for the remainder of the day." Is that also an accurate reflection of your testimony?
12. You received a sensitive complaint of sexual harassment against a high-level manager, Ms. Lee. Was your first action to contact the EEO office to ensure the process was handled correctly?
13. Was your first action to secure the evidence and ensure no retaliation could occur?
14. Your testimony states your first action was to go 'immediately' to the office of the person accused of harassment. Is that correct?
15. How do you reconcile your statement that you 'cannot be part of the investigation' with your action of immediately involving yourself by personally delivering the news of the complaint to the alleged harasser?
16. Did you consider that by immediately informing Ms. Lee, you were compromising the confidentiality of the complaint?
17. Were you concerned that this could give Ms. Lee an opportunity to interfere with the investigation or coordinate with other individuals before an EEO investigator could even be assigned?

18. You stated you went to Ms. Lee's office to 'see if she would be ok'. Was it your primary responsibility at that moment to manage the emotional state of the manager accused of sexual harassment, or was it to protect the integrity of the federal EEO process?

III. Exploring the Consequences and Justification

19. In your training, were you ever advised that the first step in handling a sexual harassment complaint is to go comfort the alleged harasser?
20. The Report of Investigation shows that within days of you informing Ms. Lee of this complaint, a chain of events was set in motion that resulted in Mr. Turnage being removed from his position based on a fabricated accusation. Do you see how your initial breach of confidentiality could have contributed to creating an environment where such retaliation was possible?
21. Looking back, do you believe that immediately informing the subject of a sexual harassment complaint was the correct procedural step according to federal EEO guidelines?
22. What specific policy or guidance did you rely on when you decided that your immediate intervention was appropriate, despite your stated belief that you should not be part of the investigation?

IV. Disregarding Exculpatory Employee Feedback

1. Ms. Ward Lund, after you placed Mr. Turnage on administrative leave and then on the 120-day detail, did you receive any feedback, positive or negative, from the employees who worked under him in the clinic?
2. Did any of his subordinate employees reach out to you to express their opinion on his leadership and their desire for him to return?
3. If so, can you tell me who you heard from?

4. I am showing you what has been marked as Exhibit [Next Number]. It is an email sent to you on April 4, 2023. Do you recognize this email?
5. You received this email, correct?
6. The author of this email, an employee of 15 years, states that Mr. Turnage is 'one of the better ones' she has been able to work with. Do you see that?
7. She also states she has 'never seen him behave in any kind of unprofessional way.' Did you read that part of the email when you received it?
8. The email says, 'if a patient gets rude, he comes out and is able to calm the situation.' How do you reconcile this description from a long-term employee with your sworn testimony that Mr. Turnage had 'temper issues'?
9. This employee described Mr. Turnage as 'valuable to us in this clinic' and someone the staff had 'come to trust and respect.' Did you take this feedback into consideration when deciding whether to continue Mr. Turnage's punitive detail?
10. You had an uncorroborated accusation from a single manager on one hand. On the other, you had this detailed, unsolicited email from a 15-year veteran employee describing Mr. Turnage as an exemplary and calming leader. Why did you choose to give more weight to the uncorroborated accusation than to the direct feedback from the staff he supervised every day?
11. Did you respond to this employee's email? If so, what was your response?
12. Did you take any steps to investigate the concerns raised in this email, such as the claim that good supervisors are often pushed out and that other supervisors mistreat their employees without consequence?
13. I am now showing you what has been marked as Exhibit [Next Number]. This is your reply to Ms. Nash's email. Did you send this email?

14. In your response, you characterize Ms. Nash's detailed, multi-paragraph email about leadership, patient care, and workplace culture as simple "kind words." Do you believe that accurately reflects the substance of her concerns?
15. Rather than addressing any of Ms. Nash's specific points about Mr. Turnage's value to the clinic, your email immediately pivots to praising Ms. Brandi Benjamin, the very person who made the uncorroborated accusation against Mr. Turnage. Why did you feel the need to do that?
16. You also copied Ms. Benjamin on your response to Ms. Nash. Isn't it true that by copying the accuser on your dismissive reply to the supporter, you were sending a clear and intimidating message to Ms. Nash and any other employee: do not stick up for Mr. Turnage, because management's loyalty is with Ms. Benjamin?
17. Wouldn't a reasonable employee interpret being copied on an email like this as a warning not to get involved or challenge a management decision, effectively creating a chilling effect on anyone else who might want to speak up?

V. Questions Regarding Involvement of Law Enforcement and Contradictory Statements

A. Foundation: The Incident and the Decision to Involve Law Enforcement

18. Ms. Ward Lund, let's return to the events of March 21, 2023. You testified that you placed Mr. Turnage on administrative leave because you believed he posed a potential threat. Is that correct?
19. In your experience as a hospital executive, when you believe an employee poses a credible, immediate threat of violence—enough to warrant being escorted out by security—is it standard procedure to notify law enforcement?
20. Was the Phoenix Police Department contacted regarding the alleged threat made by Mr. Turnage on March 21, 2023?

21. If so, who made the decision to contact them?
22. Who was the individual who placed the call to the Phoenix Police Department?
23. What was the purpose of contacting the police? Was it to file a report, to have an officer present, or for another reason?
24. To your knowledge, did the Phoenix Police Department respond to the hospital or create a police report regarding this incident?

B. Confronting the Contradiction: The Denial

25. Ms. Ward Lund, do you recall having a conversation with Mr. Turnage after these events in which he specifically asked you if the Phoenix Police had been called?
26. Do you recall telling Mr. Turnage during that conversation that the Phoenix Police were **never** called?
27. If you did tell him that, was that statement true?
28. If the police were in fact called, why would you tell Mr. Turnage that they were not?
29. So, to be perfectly clear for the record: Was the Phoenix Police Department called in response to the alleged incident on March 21, 2023, or not?
30. If your answer is yes, they were called, please explain the discrepancy between that fact and your previous statement to Mr. Turnage that they were not.

Deposition Questions for Jason White

Case: Turnage v. Secretary of Health and Human Services (HHS-IHS-0296-2023)

I. Preliminary Matters and Professional Background

1. Please state your full name for the record.
2. By whom are you currently employed?
3. What is your current job title?
4. How long have you held this position?
5. Could you please briefly describe your duties in your current role as a Recruitment and Retention Specialist?
6. Prior to this role, what was your position with the Indian Health Service?
7. During your time at the Phoenix Indian Medical Center, did you ever serve as a supervisor for Mr. Kevin Turnage?
8. Can you confirm the dates during which you were Mr. Turnage's first-line supervisor?
9. Did you receive any training from the Agency on EEO principles, retaliation, or the proper procedures for handling employee complaints?

II. Supervisory Role, PMAP Dispute, and Status as a Responsible Management Official (RMO)

1. As Mr. Turnage's supervisor, you were responsible for evaluating his performance, correct?
2. Did you serve as the rating official for Mr. Turnage's Performance Management Appraisal Plan, or PMAP, for the rating period ending on December 31, 2022?

3. According to the Report of Investigation, on page 14, you state that you rated Mr. Turnage as a 3.3. Do you recall that?
4. The ROI also notes, on page 14, that you and the reviewing official, Ms. Candace Lee, "unintentionally failed to complete one section of Complainant's PMAP." Is that your testimony?
5. Can you explain how, as the primary rating official, you missed an entire section of a standard performance evaluation form?
6. Are you aware that Mr. Turnage filed a grievance regarding this PMAP score?
7. Are you aware that in connection with that grievance, Mr. Turnage filed a sexual harassment complaint against the reviewing official, Ms. Lee, and that you were identified as a Responsible Management Official, or RMO, in that EEO matter?
8. So, to be clear, by March of 2023, you were aware that Mr. Turnage had engaged in protected EEO activity and had named you as a manager involved in the dispute?
9. Did you feel at that time that you had an adversarial relationship with Mr. Turnage as a result of this EEO complaint?

III. Appointment and Conduct as an "Investigator"

1. Let's turn to the events of March 21, 2023. The ROI states on page 16 that you were assigned to conduct an administrative investigation into an alleged threat made by Mr. Turnage. Is that correct?
2. Who specifically assigned you to conduct this investigation? Was it Ms. Debra Ward Lund? Ms. Candace Lee?
3. What specific instructions were you given for this investigation?

4. What were your official directions for this investigation? Were you provided with a formal investigation letter of authorization?
5. What are your qualifications or specialized training to serve as an investigator for employee misconduct allegations?
6. Did you complete this investigation?
7. If so, did you provide a written Report of Investigation or a summary of your findings to management? To whom did you provide it?
8. **If a written report was completed:** The official EEO Report of Investigation, which is the subject of this litigation, does not contain a copy of your administrative investigation report. Do you have any explanation as to why your report would be missing from the official case file?
9. **If a written report was completed:** To your knowledge, was your report deliberately excluded from the EEO record?
10. **If a written report was NOT completed:** If you did not produce a written report, why not? Was that your decision, or were you instructed not to?
11. **If a written report was NOT completed:** Would you agree that failing to produce a written summary of your findings constitutes a failure to complete the investigation you were assigned?
12. **If a written report was NOT completed:** Were you ever instructed to stop your investigation before you could complete it?
13. **If a written report was NOT completed:** If so, who gave you that instruction? Was it Ms. Ward Lund?

14. **If a written report was NOT completed:** What reason, if any, were you given for this instruction to stop the investigation?
15. Were you instructed to act as a neutral fact-finder?
16. When you were assigned this role, did you inform your superiors that you were an RMO named in Mr. Turnage's active EEO complaint?
17. Did you tell them that you had a potential conflict of interest in investigating an employee who had just filed a complaint in which you were a named party?
18. Did you believe it was appropriate for you to investigate an employee under these circumstances?
19. What steps did you take as part of your investigation? Who did you interview?
20. Did you interview anyone other than Ms. Ashley Krumenacker?

IV. Confrontation Regarding Witness Tampering Allegations (Ashley Krumenacker)

1. You interviewed Ms. Ashley Krumenacker because she was identified as the sole witness to the alleged incident, correct?
2. In your sworn affidavit for the ROI, on page 16, you deny tampering with her statement. You testified that the written statement you prepared was "based on the facts as she saw them." Is that still your testimony today?
3. Are you aware that Ms. Krumenacker also provided a sworn affidavit for this same investigation?
4. I'm showing you page 16 of the Report of Investigation. Please read the section under "Witness's Testimony."

5. In her sworn testimony, Ms. Krumenacker states, and I quote, that you "wanted her to sign a statement he had prepared, which did not reflect what she had told him in their interview." Is Ms. Krumenacker lying under oath?
6. She further states, and I quote, that you were "trying to get her to agree with the fact that Complainant had allegedly made the comment about beating Ms. Greve's ass." Is that statement false?
7. So, your testimony is that you presented a fair and accurate statement, and Ms. Krumenacker, a commissioned officer and the only neutral witness, is either lying or mistaken in her sworn testimony?
8. Why would Ms. Krumenacker, who had no personal stake in this matter, fabricate such a serious allegation of witness tampering against you?
9. In an email to you dated March 22, 2023, Ms. Krumenacker wrote, "The statement you have drafted does not accurately reflect our conversation nor what I witnessed yesterday." Did you receive that email?
10. So you were put on notice, in writing, that your version of her statement was inaccurate, yet your testimony in the ROI is that the statement was based on the facts as she saw them. How do you reconcile that discrepancy?
11. Did you report Ms. Krumenacker's concerns about the accuracy of your draft statement to your superiors?
12. Did you understand at the time that attempting to influence a witness's testimony in a federal investigation was improper and potentially illegal?

V. Understanding of Impartiality and Conflicts of Interest

1. In your view, what does it mean for an investigation to be "impartial"?

2. Do you believe an investigation can be impartial if the investigator has recently been named in a formal EEO complaint by the person they are investigating?
3. Were you familiar with EEOC Management Directive 110 at the time you conducted this investigation?
4. Are you aware that MD-110 requires EEO investigations in the federal sector to be thorough and impartial?
5. Given that you were a manager involved in the very PMAP dispute that was part of Mr. Turnage's EEO activity, do you believe you were capable of acting as an impartial fact-finder in a related matter just days later?
6. Looking back, do you believe you should have recused yourself from this investigation due to the clear conflict of interest? Why or why not?

Deposition Questions for Candace Lee (Chief Nursing Officer)

Case No. HHS-IHS-0296-2023

I. Introduction and Background

1. Please state your full name and current position for the record.
2. How long have you served as the Chief Nursing Officer at the Phoenix Indian Medical Center?
3. Please describe your supervisory relationship with Mr. Kevin Turnage from March 2022 to March 2023.
4. Please describe your professional relationship with Debra Ward Lund, Brandi Benjamin, and Jason White during that same period.

II. Regarding the Sexual Harassment Allegation

1. In your affidavit, you describe an incident in November 2022 where you gave Mr. Turnage a hug. Could you describe the events of that day leading up to the hug?
2. You testified that Mr. Turnage agreed to the hug. How did you ask for his consent? What were his exact words in response?
3. You also testified that you and Mr. Turnage "joked about it to staff." Who was present for these jokes? What specifically was said?
4. Did it occur to you that a supervisor initiating a hug with a subordinate could be perceived as inappropriate, regardless of intent?
5. In December 2022, you gave Mr. Turnage a holiday card where you wrote, "P.S. I still don't regret that hug!" Why did you feel it was necessary to write that?
6. Were you aware at the time that this note could be interpreted as a reference to an unwelcome physical advance?

7. When did you first become aware that Mr. Turnage considered the hug and the subsequent note to be sexual harassment?
8. How were you informed? Was it by Ms. Ward Lund?
9. What was your immediate reaction upon being informed of the complaint? What actions did you take?
10. Did you discuss the matter with any other employees, including Ms. Benjamin or Mr. White, after Ms. Ward Lund informed you?

III. Regarding the PMAP Score (Claim 2)

1. You were the reviewing official for Mr. Turnage's 2022 PMAP, correct?
2. You testified that both you and the rater, Mr. White, "unintentionally failed to complete one section" of the PMAP. How is it possible for two levels of management to miss an entire required section of a standard performance appraisal?
3. Can you walk me through your process for reviewing a subordinate's PMAP? At what point did you realize an entire section was missing?
4. Was this after Mr. Turnage filed a grievance?
5. Prior to Mr. Turnage filing his sexual harassment complaint in March 2023, did you have any conversations with Mr. White about Mr. Turnage's performance?
6. Did the hug incident from November 2022 have any bearing, conscious or subconscious, on your assessment of his performance or your review of his PMAP?
7. You state the initial score did not change after review. However, the record shows the score was raised from a 3.3 to a 3.5. Can you explain this discrepancy?

IV. Regarding Events of March 21, 2023 (Administrative Leave)

1. In your affidavit, you state you were “not aware of these events” and had been “removed from Complainant’s supervisory chain.” Is that correct?
2. As the Chief Nursing Officer, are you saying you were completely unaware that a Supervisory Clinic Nurse under your broader authority was accused of making a violent threat, placed on administrative leave, and escorted from the building by security?
3. When did you first learn of the alleged threat made by Mr. Turnage? Who informed you?
4. Did Ms. Ward Lund or Ms. Benjamin discuss the incident with you at any point on or after March 21, 2023?
5. Did you participate in any meetings or discussions where the decision to place Mr. Turnage on administrative leave or detail was made?

V. Involvement of Law Enforcement

1. Are you aware that the Phoenix Police Department was contacted regarding the alleged threat on March 21, 2023?
2. When did you become aware of this?
3. Who made the decision to involve law enforcement? Was it you, Ms. Ward Lund, or Ms. Benjamin?
4. In your professional judgment, did an uncorroborated verbal statement, which the only witness denies hearing, warrant calling the police on a federal employee?
5. Were you present when the call was made? Did you review a police report after one was filed?
6. Why was law enforcement involved for this allegation, but not for the multiple hostile work environment complaints filed by Mr. Turnage and his staff against another nurse?

Deposition Questions for Brandi Benjamin (Assistant Chief Nursing Officer)

Deposition Questions for Dr. McCabe

Case: *Turnage v. Secretary of Health and Human Services*, No. 2:25-cv-03367-CDB **Date of Deposition:** [Date] **Deponent:** Dr. McCabe

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I. Introduction and Foundational Questions

1. Please state your full name for the record.
2. What is your current position and title?
3. By whom are you currently employed?
4. How long have you been employed by the Indian Health Service?
5. Could you please provide a brief overview of your professional and educational background?
6. In 2023, what was your role at the Phoenix Indian Medical Center, or PIMC?
7. Do you know an individual named Kevin Turnage?
8. At some point in 2023, did Mr. Turnage come to work under your supervision?
9. Can you tell me how that came about? Who informed you that Mr. Turnage would be detailed to your unit?
10. What were you told about the reason for Mr. Turnage's detail?
11. Who specifically provided you with this information? Was it Debra Ward Lund?
12. Before Mr. Turnage began his detail with you, what information, if any, were you given about the circumstances that led to it?
13. Were you told that he had been placed on administrative leave?
14. Were you told that the leave was related to an allegation that he had made a threat?
15. Did anyone in management give you any warnings or express any concerns about supervising Mr. Turnage before he started?

II. Supervision of Mr. Turnage

16. Do you recall the approximate start and end dates of Mr. Turnage's 120-day detail under your supervision?
17. What were Mr. Turnage's primary duties and responsibilities during this detail?
18. How frequently did you interact with him in a professional capacity during this period? Daily? Weekly?
19. Please describe your observations of Mr. Turnage's work performance during the detail.
20. Was his work satisfactory?
21. Please describe your observations of Mr. Turnage's professionalism and his interactions with you and other staff members.
22. Debra Ward Lund has testified that Mr. Turnage had "temper issues." During the entire 120-day period that you directly supervised him, did you ever witness Mr. Turnage display any "temper issues"?
23. Did you ever witness him raise his voice inappropriately, become agitated, or act unprofessionally in any way?
24. Did any other employees who worked with Mr. Turnage during his detail ever report any behavioral problems or concerns about his temperament to you?
25. Based on your direct observations, how did Mr. Turnage's temperament and professionalism compare to other employees you have supervised in your career?
26. Is it fair to say that, based on your personal and direct supervision of him, you found no evidence of the "temper issues" Ms. Ward Lund described?

III. Conversation with Debra Ward Lund

27. I'd like to focus now on conversations you had with Debra Ward Lund. Did you ever discuss Mr. Turnage with her?

28. Do you recall a specific conversation with Ms. Ward Lund that took place after Mr. Turnage had been detailed to your unit?
29. Can you tell me, to the best of your recollection, when and where this conversation occurred? Was it in person, or over the phone?
30. Who else, if anyone, was present for this conversation?
31. How did the topic of Mr. Turnage come up?
32. Is it correct that you made a comment to Ms. Ward Lund to the effect that you had met Mr. Turnage and thought he was nice?
33. What was Ms. Ward Lund's exact response to your comment?
34. The case file indicates that she responded, "Yes he is until you piss him off!" Do you recall her making that statement or one very similar to it?
35. How did she say it? What was her tone of voice—was it serious, joking, cautionary, angry?
36. What was her demeanor and facial expression when she said it?
37. What was your immediate reaction to that comment? What did you think she meant by it?
38. Did her comment seem consistent or inconsistent with your own experiences supervising Mr. Turnage up to that point?
39. Did you and Ms. Ward Lund have any further discussion about her comment? Did you ask her to elaborate on what she meant?
40. What was said immediately after she made that comment?

IV. Other Communications

41. Besides that specific conversation, did you have any other discussions with Ms. Ward Lund about Mr. Turnage, either during or after his detail?
42. If so, what was the substance of those conversations?

43. Did you ever discuss Mr. Turnage's performance or conduct with any other managers at PIMC?
44. For instance, did you ever speak about Mr. Turnage with Brandi Benjamin?
45. Did you ever speak about Mr. Turnage with Jason White?
46. Did you ever speak about Mr. Turnage with Candace Lee?
47. Did any manager ever ask you for a formal or informal assessment of Mr. Turnage's performance while he was on detail with you?

V. Concluding Observations

48. Based on your 120 days of directly supervising Mr. Turnage, what is your overall assessment of him as an employee?
49. Did you observe anything during his detail that would lead you to believe he was a threat to anyone in the workplace?
50. Did you observe anything that would suggest he was unfit to return to his prior supervisory position?
51. Do you have any knowledge about the decision-making process regarding what would happen to Mr. Turnage after his 120-day detail with you ended?
52. Were you ever consulted or asked for your input on whether he should be returned to his position of record?
53. To your knowledge, why wasn't he returned to his original job?